SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 01/15/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued**.** Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule* 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01569
CASE NAME: JAIME CEJA VS. STORAGEPRO, INC., AN UNKNOWN BUSINESS ENTITY
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:
****TENTATIVE RULING:****
The Settlement Administrator's declaration shows that the settlement terms have been implemented. The Settlement Administrator is directed to disburse the remaining 5% of attorney's fees to plaintiff's counsel. No further proceedings are contemplated.

2. 9:00 AM CASE NUMBER: C22-02282
CASE NAME: KERSTI PETER VS. KATHERINE BERNSTEIN
HEARING ON SUMMARY MOTION JUDMENT
FILED BY: BERNSTEIN, KATHERINE
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant Katherine Bernstein. For the reasons set forth, the motion is **denied**.

Background

This action arises out of a boundary dispute between neighboring property owners in Orinda. On October 24, 2022, Plaintiffs Kersti Peter and William Peter filed a complaint alleging a single cause of action for trespass against defendant Katherine Bernstein. Plaintiffs allege Bernstein is interfering with Plaintiffs' property "by constructing and maintaining a fence, posts, concrete steps, and other improvements" (the "Bernstein Intrusions") on the Peters' property. (Compl. ¶¶ 1, 2, 4.) Plaintiffs' allege past, present, and continuing injury from the trespass on their land and that the trespass was intentional for which Plaintiffs seek damages as well as injunctive relief against future trespass. (Compl. ¶¶ 6-8 and Prayer ¶ 15.)

Defendant Bernstein now moves for summary judgment, and Plaintiffs oppose the motion.

Legal Standards for Ruling on Defendant's Motion

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

The issues to be considered on a motion for summary judgment or summary adjudication are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161 ["The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action."].) The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . .' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180;

Cohen v. Five Brooks Stable (2008) 159 Cal.App.4th 1476, 1497.) (See also Code Civ. Proc. § 437c(c).) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen, supra,* 159 Cal.App.4th at 1483.)

Procedural Note on Reply Separate Statement

Code of Civil Procedure section 437c(b)(4) states in relevant part, "The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (Emphasis added.) Defendant filed a "Reply to Response to Separate Statement of Undisputed Material Facts" responding to Plaintiffs' Response to the SS, which is not permitted under the statute.

Analysis

Defendant's motion is supported by Defendant's Separate Statement ("SS") of Undisputed Material Facts ("UMFs") and the declarations of Gary Boeder, Gary Bryson, and Bernstein's counsel Alison Crane. Plaintiffs filed their Response to the SS, which lists six of the 11 UMFs as undisputed, and includes two additional material facts ("AMFs") which Plaintiffs contend, along with their disputed UMFs, preclude granting summary judgment for Bernstein.

A. Undisputed Material Facts

The parties do not dispute that in 1974, Gary Boeder and Gary Bryson co-owned a single parcel of property in Orinda that they agreed to subdivide in 1979 into "Parcel A" which became the property located at 209 Camino Pablo, now owned by Bernstein (also referred to herein as the "Bernstein Property"), and "Parcel B" which became the property located at 23 North Lane, now owned by Plaintiffs and also referred to herein as the "Peter Parcel." (UMF Nos. 1, 2; Compl. ¶¶ 1, 2.) In July 1983, Kersti Peter's grandparents, the Johnsons, purchased Parcel B, the Peter Parcel. (UMF No. 7.) The Peter Parcel was transferred to Kersti Peter's mother through a family trust, and in December 2012, Plaintiffs purchased the Peter Parcel from Kersti Peter's mother. (UMF Nos. 7-9.) It is also undisputed that Gary Boeder and Gary Bryson built a fence between Parcel A and Parcel B between 1980 and 1982 which has remained in the current location since it was constructed in that two-year time frame. (UMF No. 10.)

B. UMFs Listed as Disputed by Plaintiffs and Plaintiffs' AMFs

Based on declarations by Boeder and Bryson that they were "uncertain" of the boundary line when they subdivided the two parcels, Bernstein contends Boeder and Bryson agreed that the boundary line between the two properties would be the line where an old, dilapidated fence existed which they replaced when they erected the fencing between 1980 and 1982. (UMF Nos. 3, 4, 5.) Plaintiffs dispute these UMFs. They contend there was no uncertainty regarding the boundary line after the parcel map subdividing the two properties was recorded in 1979. (Resp. to UMF Nos. 3, 4.) Plaintiffs dispute that any agreement was made to fix the boundary line or that the purpose of any agreement regarding the fencing was to fix an uncertain boundary line. (Resp. to UMF No. 5.)

Though they do not dispute that Gary Bryson lived at the Peter Parcel until 1983 and the fencing remained at its current location after it was erected between 1980 and 1982 (UMF Nos. 6, 10), Plaintiffs dispute that Bryson "accepted" the fenced as the fixed agreed boundary. (Resp. to UMF No.

6.) Plaintiffs also dispute that the members of the Peter family who have lived at the Peter Parcel from 1983-2013 "acquiesced" in the boundary line fixed by the fence between the parcels, as Plaintiffs contend the prior owners did not know the fence was not on the "true" boundary line, and at most had "constructive notice" of the true boundary based on the recorded parcel map subdividing the parcels. (UMF No. 11 and Resp. to UMF No. 11.)

Plaintiffs also raise AMFs, in which they contend the "first" agreement regarding a boundary line between the parcels was made before the 1979 subdivision of the parcels and recording of the parcel map. (AMF No. 12.) They assert Boeder and Bryson, who subdivided the property, did not "preserve" the fence line as the boundary of the parcels because they subsequently recorded the parcel map setting forth the "certain" true boundary between the subdivided parcels. (AMF No. 13.)

C. Legal Framework: Trespass and the Agreed Boundary Doctrine

The elements of a trespass claim are: "(1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. (*See* CACI No. 2000.)" (*Ralphs Grocery Co. v. Victory Consultants, Inc.*, *supra,* 17 Cal.App.5th at 262 [emphasis added].) Defendant' relies on her assertion of the agreed boundary doctrine as a defense to negate Plaintiffs' trespass claim because under that doctrine, the former owners of the adjoining parcels agreed that the boundary line of the properties would be where the current fencing is located.

"The agreed boundary doctrine constitutes a firmly established exception to the general rule that accords determinative legal effect to the description of land contained in a deed." (*Bryant v. Blevins* (1994) 9 Cal.4th 47, 54.) The California Supreme Court in *Bryant* reaffirmed "the vitality of the requirements necessary to establish the applicability of the agreed-boundary doctrine, set forth in *Ernie v. Trinity Lutheran Church* (1959) 51 Cal.2d 702." (*Id.*) The requirements of the agreed-boundary doctrine stated in *Ernie* are "that there be an uncertainty as to the true boundary line, an agreement between the coterminous owners fixing the line, and acceptance and acquiescence in the line so fixed for a period equal to the statute of limitations or under such circumstances that substantial loss would be caused by a change of its position." (*Ernie v. Trinity Lutheran Church* (1959) 51 Cal.2d 702, 707.)

The Court in *Bryant* also declined "to limit application of the agreed-boundary doctrine to instances in which existing legal records are inadequate to settle a boundary dispute," explaining that "such an inflexible rule would risk destabilizing long-standing agreements--made in good faith by coterminous property owners in order to resolve uncertainty as to the location of their common boundaries--that might, for any one of several reasons, be at variance with legal property descriptions or survey results." (*Bryant, supra,* 9 Cal.4th at 54 [emphasis added].) (*See also Ernie, supra,* 51 Cal.2d at 707-708 ["It is not required that the true location be absolutely unascertainable [citation omitted]; that an accurate survey from the calls in the deed is possible [citation omitted], or that the uncertainty should appear from the deeds [citation omitted]. The line may be founded on a mistake. [Citation omitted.]"].)

The agreed boundary doctrine "arose as a way to settle disputes over boundaries in an earlier time, when surveys were notoriously inaccurate and the monuments and landmarks they described could not be located. In more recent times, however, accurate surveys and verifiable recorded deeds are the rule. [Citation omitted.]" (*Mehdizadeh v. Mincer* (1996) 46 Cal.App.4th 1296, 1304.) The Court in *Mesnick v. Caton* (1986) 183 Cal. App. 3d 1248, cited by defendant, expounded on the proper application of the doctrine: "The doctrine of agreed boundaries should most plausibly come into play when legal records fail to settle a boundary dispute. That failure may occur when records never existed, have been destroyed, or are inaccurate, or when the natural features or surveyors' monuments or corners have changed or vanished. [Citations omitted.] Where no reliable legal description exists, the courts have resort to the agreed boundary doctrine. It is better than nothing. But the law should not employ a residual doctrine, a last legal resort, to dispossess an owner of his land when a legal means of establishing an accurate boundary lies quite readily and conveniently to hand." (*Id.* at 1256-1257.)

Courts have drawn some clear lines in applying the doctrine, for example, drawing a distinction between adjoining property owners making an agreement to resolve a dispute over the location of the true boundary line, a circumstance in which the doctrine applies, and the parties merely agreeing on the location of fencing or parties acquiescing in the location of fencing between properties over a long period of time, where the doctrine does not apply. (*See, e.g., Allen v. McMillion* (1978) 82 Cal.App.3d 211, 215 [parties agreed on fence location for convenience, not to resolve a dispute over boundary location; agreed boundary doctrine not satisfied]; *Mehdizadeh, supra,* 46 Cal.App.4th at 1303-1304 [parties acquiesced in location of fence over a long period; agreed boundary doctrine not satisfied]; *Martin v. Lopes* (1946) 28 Cal.2d 618, 625 [assumption by an owner that fence marks the boundary insufficient to apply agreed boundary doctrine]; *Moniz v. Perlman* (1934) 220 Cal. 429, 435 [stating "It is, of course, true that the acquiescence must consist in acquiescence in the fence as a boundary line and not mere acquiescence in the existence of the fence as a barrier," but finding evidence sufficient to support agreed boundary where original owners in 1908 hired surveyor and parties jointly built fencing agreed as the property line from survey stakes marking corner boundary, and well and pump were built based on that boundary].)

Courts in practice have applied the doctrine "somewhat inconsistently." (*Mesnick, supra,* 183 Cal.App.3d at 1257 [citing *Zachery v. McWilliams* (1972) 28 Cal.App.3d 57, 61].) Defendant, for example, cites cases in which the two property owners have been mistaken about the location of the boundary line possibly because of a surveyor's mistake in marking the property with survey posts (*see, e.g., Silva v. Azevedo* (1918) 178 Cal. 495) or because of conflicts in recorded surveys followed by erection of substantial, permanent improvement based on the boundary line believed by the property owners to be the true line (*see, e.g., Ernie, supra,* 51 Cal.2d at 708-709; *Moniz, supra,* 220 Cal. at 435).

But more recently, relying on the Court's statements in *Bryant* and decisions cited with approval by the Court in *Bryant*, the Court in *Martin v. Van Bergen* found the agreed boundary doctrine did not apply in part because there was no uncertainty regarding the true boundary line as it could be ascertained from the recorded surveys and deeds: "*Bryant* requires 'deference to the sanctity of true and accurate legal descriptions.' [Citation omitted.] Thus, a boundary is not uncertain if it can be ascertained by an accurate survey." (*Martin, supra,* 209 Cal.App.4th at 90.) (*See also Armitage v. Decker* (1990) 218 Cal.App.3d 887 [discussed with approval in *Bryant, supra,* 9 Cal.4th at 57 and in *Martin, supra,* 209 Cal.App.4th at 89, stating the agreed boundary doctrine could not be used to "supersede recorded legal descriptions of the property where, as here, they are fully consistent" because application of the doctrine in that circumstance "would not only destroy the significance of recorded instruments but would foster litigation rather than preventing it," but the Court also noted there was no "direct proof" that the fence in that case had been built to resolve the adjoining landowners' uncertainty regarding the boundary].)

D. Application to the Motion – Failure to Meet Initial Burden

The issues on a motion for summary judgment are defined by the pleadings, in particular the allegations of the operative complaint. (*Doe, supra,* 23 Cal.App.5th at 661; *Teselle, supra,* 173 Cal.App.4th at 161.) The Complaint alleges a claim for trespass on Plaintiffs' property based on Defendant's placing a "fence, posts, concrete steps, and other improvements" on Plaintiffs' property. (Compl. ¶ 4.)

The only evidence presented by Defendant in support of the motion addresses the location of a fence between the two properties, which declarants Bryson and Boeder declare they accepted as the property line dividing Parcel A and Parcel B. Defendant has submitted no evidence negating that Bernstein constructed and maintained "posts, concrete steps, and other improvements" on Plaintiffs' property (Compl. ¶ 4), whether the property is defined by the recorded Parcel Map or based on the location of the fence which Bernstein contends is the true, agreed boundary line. Defendant appears to assume either that the fence is the only encroachment alleged, or that the Court should assume, without evidence, that any "posts, concrete steps, and other improvements" do not extend beyond the fence onto Plaintiffs' property. The Court cannot rely on an assumption without evidence in the record to support this fact essential to demonstrating Defendant has a complete defense to the trespass claim.

The motion for summary judgment is **denied** on this ground.

E. Application to the Motion – Agreed Boundary Doctrine

Even if the Court could somehow accept the assumption that the "Bernstein Intrusions" are all located on the side of the fence next to the Bernstein property (Parcel A), the Court finds there are triable issues of fact that preclude summary judgment regarding the application of the agreed boundary doctrine under the circumstances. The evidence is undisputed that there was "dilapidated" fence located on the portion of the properties where the current fencing is installed that necessarily existed before the fencing was replaced between 1980 and 1982 by the two adjoining property owners after the parcel map was recorded. (UMF No. 10.) But under the authorities discussed above, an agreement on the location of fencing between adjoining property owners is not the same as an agreement to locate the boundary line where the fencing is installed in order to resolve uncertainty or a dispute over the true property boundary line.

The evidence in the Bryson and Boeder Declarations that they were each "uncertain" where the boundary line for the parcels was located and that Boeder and Bryson agreed to fix the boundary where the "old dilapidated fence" was located is ambiguous as to time and meaning, even if the statements are admissible evidence. (*See* Evid. Obj. addressed below.) They each declare they were uncertain "[w]hen subdividing the Parcel in 1979." (Bryson Decl. ¶ 4; Boeder Decl. ¶ 4 [emphasis added].) They do not declare that there was any uncertainty as to the location of the boundary line after they subdivided the property, executed the Parcel Map and recorded it. They also do not declare they erected the fence between 1980 and 1982, after the Parcel Map was recorded, in order to fix an uncertain but agreed boundary line. (Boeder Decl. ¶ 6; Bryson Decl. ¶ 6.) The Court is required to strictly construe evidence offered by the party moving for summary judgment in ruling on the motion. (*D'Amico, supra,* 11 Cal.3d at 20; *Johnson, supra,* 43 Cal.4th at 64.)

Even if the evidence in support of the motion were sufficient to meet Bernstein's initial burden on the motion, supporting an inference that the uncertainty regarding the location of the property line extended after Bryson and Boeder surveyed the property, developed, agreed to and then recorded the Parcel Map and was resolved by agreement by them jointly erecting the fencing where the old fence was located, Plaintiffs have met their burden to raise triable issues of fact in opposition to the motion. First, the Bryson deposition testimony raises potential triable issues regarding when Bryson and Boeder were "uncertain" about the location of the boundary line and whether they in fact resolved the uncertainty by their agreement to and recordation of the Parcel Map which set the boundary between Parcel A and Parcel B. (Pl. Evid. Exh. 16 [Bryson Depo. 22:19-24:10, 30:20-31:5].)

There are at least conflicting inferences that can be drawn from Bryson's deposition testimony, one of which would make the agreed boundary doctrine inapplicable. Specifically, the testimony could support an inference that the property owners' uncertainty existed regarding the boundary <u>before</u> they obtained a formal survey and agreed to execute and record the Parcel Map, that the agreed, executed Parcel Map resolved the uncertainty regarding the boundary by setting the true legal boundaries for the parcels in the recorded Parcel Map which they agreed to when the executed and recorded the Parcel Map, and that the parties merely acquiesced in maintaining the fencing in its existing location when they constructed it in 1980-1982 as a matter of convenience. Boeder's deposition testimony indicates that the new fence was erected to replace the old dilapidated fence between 1980 and 1982 and that he and Bryson agreed to locate the new fence where the old fence was, but not specifically in order to fix the property line between the parcels at the location of the fence because they were uncertain about the true boundary line. (Pl. Evid. Exh. 8 [Boeder Depo. 18:13-18, 19:1-3].) Bryson's deposition testimony indicates the uncertainty about the boundary line that existed before the Parcel Map was agreed on and recorded, but that the new fence in 1980-1982 was merely built to replace the old one, not based on an agreement to establish the property line there because there was still "uncertainty" about the true boundary. (Pl. Evid. Exh. 16 [Bryson Depo. 22:19-24:10, 30:20-31:5].)

Acquiescence in the location of fencing between properties is not the same as resolving uncertainty regarding the property line by the parties' agreeing to establish the property line where the fencing was located. (*See, e.g., Bryant, supra,* 9 Cal.4th at 58 [reversing Court of Appeal, where there was no evidence the original barbed wire fence dividing a lot "was erected to resolve uncertainty as to the location of the property boundary," and presence of later erected fence was acquiesced in over a long term was not enough as there had to be "uncertainty as to the location of the true boundary <u>when the fence was erected, and an agreement between the neighboring property owners to employ the location of the fence as the means of establishing the boundary</u>." (Emphasis added.)]; *Martin, supra*, 209 Cal.App.4th at 89-90; *Mesnick, supra,* 183 Cal.App.3d at 215.) (*Compare to Moniz, supra,* 220 Cal. at 430-435 [uncertainty of boundary was shown by original owners finding it necessary to hire a surveyor, surveyor placing survey stakes at corner of boundary location, and owners jointly building fence to mark the property boundary line from the survey stakes, and owners agreeing and relying on the survey stakes and jointly built fencing to be the true boundary line of the properties from 1908 forward until the new property owner in 1930].)

Second, Plaintiffs' opposition evidence at least raises a triable issue of fact as to the issue of "uncertainty" regarding boundary line since the Parcel Map was executed and recorded by Boeder and Bryson. The evidence arguably could support a finding that there was no uncertainty regarding the location of the property boundary line once the original owners decided to agree on and record the Parcel Map based on the real property records and multiple surveys commissioned by both of the adjoining landowners, all of which locate the boundary line in the same place as the boundary line on the Parcel Map and show the fencing is located in part on the Peter Parcel. (Pl. Evid. Exh. 3 [W. Peter Decl. ¶ 3], Exh. 10 [Parcel Map, see also Pl. Evid. Exh. 8, Boeder Depo. 10:14-12:1], Exh. 11 [Lins Depo. 12:6-9, 13:23-14:1, 16:7-15, Lins Depo. Exh. 4] and Exh. 13 [same as Lins Depo. Exh. 4].)

Third, there are, at a minimum, conflicting inferences to be drawn from evidence of the property owners' communications after Plaintiffs acquired the Peter Parcel. Bernstein's email of September 2021, apparently drafted by her husband Boeder, proposes that a new survey be prepared and paid for by both parties "and we use the present fence line as the actual property line for the purposes of the survey line between our two properties," following a discussion of the location of the fence in relation to Plaintiffs' trees and the setback requirements that limit where structures could be built. (Pl. Evid. Exh. 9, see W. Peter Decl. ¶ 12]; Exh. 8 [Boeder Depo. 47:11-14 and Boeder Depo. Exh. 8 [acknowledging Boeder sent the email, Exh. 8].) The language supports a reasonable inference that Bernstein and Boeder were making a proposal on where to locate the property line, not declaring that the fence was the true boundary line based on a boundary line agreed to decades earlier by predecessor owners. The fact that neither Bernstein nor Boeder ever informed the Peters there was an agreed boundary line where the fence was located, even after the Peters obtained a survey and raised disputes about the fence being on their property raises triable issues as to the existence of an agreed boundary. (*See* Pl. Evid. Exh. 8 [Boeder Depo. p. 23:12-18; 23:25-24:3]; K. Peter Decl. ¶ 4; W. Peter Decl. ¶¶ 4-12, 14.)

Almost all of the cases cited by the parties in their briefing were decided on a full evidentiary record in a trial. (*See Bryant, supra,* 9 Cal.4th 47; *Ernie, supra,* 51 Cal.2d 702; *Martin, supra,* 209 Cal.App.4th 84; *Kunza v. Gaskell* (1979) 91 Cal.App.3d 201; *Moniz, supra*, 220 Cal. 429.) (*See also Armitage, supra,* 218 Cal.App.3d at 903 [judgment after jury trial].) One exception is *Allen v. McMillion, supra,* in which the Court affirmed summary judgment for the defendant on two causes of action for quiet title and declaratory relief because the applied boundary doctrine <u>did not apply</u> based on uncontested evidence showed there was no agreement to fix the boundary line between the properties at the location of the fence, but the Court reversed summary judgment for defendant on the trespass cause of action. (*Allen, supra,* 82 Cal.App.3d at 215, 218-219.) *Mesnick v. Caton, supra,* 183 Cal.App.3d 1248 was decided after a nonjury trial following the trial court's denial of a motion for summary judgment on the ground there were triable issues of fact as to whether there was uncertainty regarding the boundary and whether the original landowners intended the fence to be an agreed boundary. (*Id*. at 1253-1254.)

The Court in *Mesnick v. Caton, supra,* 183 Cal.App.3d 1248, found that the evidence fell short of demonstrating uncertainty for the application of the agreed boundary doctrine. It cited and relied on the decision *Finley v. Yuba County Water Dist.* (1979) 99 Cal.App.3d 691, finding the "acute analysis" in that case to be "a more contemporary and persuasive statement of how and when to use this doctrine." (*Id.* at 1257.) The Court stated that the agreed boundary doctrine " 'is not intended to subvert neighborliness or prudence whereby a neighbor allows another to use part of his land for the neighbor's (or their mutual) benefit, and this concept grows in importance as we progressively become a more congested society. [para.] Therefore, the mere fact that a landowner allows his neighbor to occupy or use part of his land does not automatically fix the boundary between them or give the neighbor a right to use or take the property in perpetuity. <u>The doctrine rightfully rests on the intent of the parties, and determining such intent is the province of the trier of fact</u>.' " (*Mesnick, supra,* 183 Cal.App.3d at 1257 [quoting *Finley, supra,* 99 Cal.App.3d at 700].)

The Court also rejects Defendant's position that the only relevant evidence for assessing whether the agreed boundary doctrine applies is what transpired in 1979, apparently whatever Boeder and Bryson state in their declarations they believed "[w]hen [they were] subdividing the Parcel in 1979." (Bryson Decl. ¶ 4; Boeder Decl. ¶ 4.) Evidence of subsequent events, statements, and conduct of the property owners, including Boeder who apparently does not own the Bernstein Property but has lived there since 1981 and was one of the subdividers, is relevant to assessing whether and what "uncertainty" existed regarding the boundary, the nature of any agreement regarding the location of the fence, and the existence of any agreement to establish a boundary different from that set forth in the recorded Parcel Map.

The motion for summary judgment is also **denied** on these grounds. There are triable issues of fact as to whether there was uncertainty regarding the true boundary line between the properties within the meaning of the case law construing the agreed boundary doctrine and whether there was an agreed by the prior property owners to resolve the uncertainty by establishing the true boundary line at the location of the fence.

<u>Evidentiary Objections</u>

The Court rules on those evidentiary objections which the Court deems to be material to the determination of the motion pursuant to Code of Civil Procedure section 437c(q).

A. <u>Plaintiffs' Evidentiary Objections</u>

Obj. Nos. 1, 2 – **Overruled.** The statement that each of the declarants was "uncertain" about the boundary line may be considered an evidentiary fact regarding each declarant's state of mind at the time of the event described. Notably, the declarants do not state that the boundary was uncertain, which might be an ultimate fact or conclusion. (*Compare to Knox v. Dean* (2012) 205 Cal. App. 4th 417, 432 ["Dean's statement that he 'carefully monitored' Blaine's health and provided for '[n]ecessary doctor appointments' are merely assertions of ultimate fact, and as such, were insufficient to support summary judgment in his favor."].)

B. <u>Defendant's Objections to Plaintiffs' Evidence</u>

Obj. Nos. 1-3 – **Overruled**.

Obj. Nos. 4, 5 – **Sustained in part, overruled in part.** The relevance objections are overruled. The hearsay objections are sustained to the extent that the letters are offered to prove the truth of factual statements in the letters, primarily that the fence is on Plaintiffs' property and encroaching, but they are admitted for the limited purpose that Plaintiffs asserted their position regarding the alleged encroachment of the fence and disputed the fence's location.

Obj. Nos. 7-9 – **Overruled.**

3. 9:00 AM CASE NUMBER: C23-01240
CASE NAME: FERNANDO RAMOS VS. DONALD CHAIKEN
***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION & PAGA CLAIMS**
FILED BY:
<u>*TENTATIVE RULING:*</u>

Plaintiffs Fernando Ramos and Kevin Nikaido move for final approval of their class action and PAGA settlements with defendants Davidon Homes, Davidon Corporation, and Donald Chaiken. It will resolve Nikaido v. Apartment Management Consultants LLC (C24-00721), Nikaido v. Apartment Management Consultants LLC (C24-01530) and Ramos v. Davidon Homes (C23-01240).

A. **Background and Settlement Terms**

The original complaint was filed by Mr. Ramos on May 24, 2023, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. A class action complaint making similar claims was filed by Mr. Nikaido on May 19, 2024. Nikaido filed a PAGA complaint on June 12, 2024. The operative pleading is the Amended Complaint in this matter, which was filed April 2, 2025, after the settlement had been reached.

The settlement would create a gross settlement fund of $900,000. The class representative payment to plaintiff would be up to $5,000 for each plaintiff ($10,000 total). Attorney's fees would be $300,000 (one-third of the settlement). Litigation costs would not exceed $40,000. The settlement administrator's costs would not exceed $10,000. PAGA penalties would be $45,000, resulting in a payment of $33,750 to the LWDA and $11,250 to plaintiffs. The net amount paid directly to the class members would be about $495,000. The fund is non-reversionary. Based on the estimated class size of 209, the average net payment for each class member is approximately $2,368.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be tendered to the "State of California's Unpaid Wage Fund" (more commonly known as the State

Controller's unclaimed property fund).

Notice was sent to all class members on September 8, 2025. 22 notices were returned as undeliverable. Follow-up found 18 new addresses, which were remailed. Four notices are now considered undeliverable. No class members submitted objections, or requests for exclusions.

The settlement contains release language covering as "Released Class Claims" any and all "claims pled in the operative complaint, or claims that could have been pled based on the factual allegations pled in the operative complaint." Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. **Legal Standards**

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. **Attorney fees, costs and representative enhancement**

Plaintiff seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) For this motion, counsel have calculated a lodestar fee of $282,575, based on 364.50 hours, at hourly rates ranging from $600 to $850. This results in an imputed multiplier of 1.06. Without necessarily endorsing each component of the lodestar fee, no adjustment is necessary. The $300,000 attorney fee is reasonable and is approved.

Plaintiffs request litigation costs of $30,621.57, less than the maximum of $40,000 set at time of preliminary approval. The costs are reasonable and are approved.

Plaintiffs request settlement administrator's costs of $5,890, less than the maximum of $10,000 set at preliminary approval. The costs are reasonable and are approved.

The requested representative payment of $10,000 total for plaintiffs ($5,000 each) is now reviewed, based on the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Although plaintiffs do not submit declarations attesting to the time spent on the matter and the risks taken in serving as a plaintiff, counsel argues that the ordinarily present factors exist in this case. Given the relatively modest $5,000 each award, it is approved.

D. **Conclusion**

The Court finds that the proposed settlement is fair, reasonable, and adequate. The motion is granted.

Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, and a judgment for entry by the Court. The judgment must provide for a compliance hearing after the settlement has been completely implemented, with the date selected in consultation with the Department Clerk. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

4. 9:00 AM CASE NUMBER: C23-02006
CASE NAME: RYAN REYNOLDS VS. SECURE AUTO TRANSPORT, INC.
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:
The motion is granted. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.

5. 9:00 AM CASE NUMBER: C23-02820
CASE NAME: ILIANA REYES VS. DOES 1 THROUGH 50, INCLUSIVE
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY:
TENTATIVE RULING:

Appearances required to address one issue identified below.

Plaintiff Iliana Reyes moves for preliminary approval of her class action and PAGA settlement with defendants Firstamerica Automotive, Inc., Firstamerica Automotive, LLC, Sonic Automotive Inc., Beverly Hills BMW, and Echo Park Automotive.

A. Background and Settlement Terms

The original complaint was filed by Ms. Reyes on November 6, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Plaintiff filed a First Amended Complaint on January 10, 2024 adding PAGA claims. The operative pleading is the First Amended Complaint.

The settlement would create a gross settlement fund of $1,800,000. The class representative payment to plaintiff would be up to $10,000. Attorney's fees would be $600,000 (one-third of the settlement). Litigation costs would not exceed $25,000. The settlement administrator's costs would not exceed $30,000. PAGA penalties would be $200,000, resulting in a payment of $150,000 to the LWDA and $50,000 to plaintiffs. The net amount paid directly to the class members would be about $935,000. The fund is non-reversionary. Based on the estimated class size of 4,571, the average net payment for each class member is approximately $204.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be paid to a cy pres recipient, "No Kid Hungry."

Counsel must "notify the court if the attorney has a connection to or a relationship with a nonparty recipient of the distribution that could reasonably create the appearance of impropriety as between the selection of the recipient of the money or thing of value and the interests of the class." (CCP § 382.4.) The needed information must be provided "in connection with the hearing for preliminary approval[.]" The settlement states that "The Parties, Class Counsel and Defense Counsel represent that they have no interest or relationship, financial or otherwise with the intended Cy Pres Recipient." (Settlement, Par. 4.3.3.) This is sufficient to satisfy that requirement. In addition, the cy pres recipient must be qualified under Code of Civil Procedure section 384(b), which requires that cy pres funds be provided "to nonprofit organizations or foundations to support projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent[.]" The moving papers do not include any representation as to the activities or status of "No Kid Hungry," or otherwise establish how it meets the requirements of Code of Civil Procedure sections 382.4 and 384(b).

The settlement contains release language covering the "Release by Participating Class Members, which covers "all claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Operative Complaint and ascertained in the course of the Action[.]" (Settlement, Par. 5.3.) Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint."] "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel will be directed to provide a lodestar figure for any hearing on final approval.

Similarly, litigation costs and the requested representative payment of $10,000 total for plaintiffs will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-

807.

D. Conclusion

The Court finds that additional documentation is required to establish that "No Kid Hungry" meets the requirements for a cy pres beneficiary under Code of Civil Procedure section 384(b). **Appearances are required in order to set a date for a continued hearing after appropriate documentation is provided.**

Subject to resolution of that issue, the Court would find that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

If the motion ultimately is granted, counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

6. 9:00 AM CASE NUMBER: C23-03203
CASE NAME: BRYANT POTTS VS. BUILDING CONNECTIONS BEHAVIORAL HEALTH, INC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: BUILDING CONNECTIONS BEHAVIORAL HEALTH, INC
****TENTATIVE RULING:****

Defendant, Building Connections Behavioral Health, Inc., filed this motion to compel arbitration after plaintiff, Bryant Potts, filed this putative class action for wage and hour violations. The motion is **granted**. Parties are ordered to arbitrate, and the action is stayed pending the outcome of arbitration. A court must order arbitration if it determines that a valid agreement to arbitrate exists. Here, such agreement exists, as discussed below.

Background

Plaintiff filed this putative class action in December of 2023, alleging he worked for defendant from approximately December 2016 to May 12, 2022, as a non-exempt clinical supervisor. He sets forth eleven causes of action: (1) failure to pay overtime; (2) failure to pay state minimum wage; (3) failure to provide accurate pay stubs; (4) failure to provide meal breaks; (5) failure to provide rest breaks; (6) failure to reimburse all work-related expenses; (7) failure to timely pay wages during employment; (8) failure to pay all wages on discharge; (9) violation of unfair competition law; (10) retaliation in violation of Labor Code § 1102.5; and (11) wrongful termination in violation of public policy. In response, on July 17, 2024, defendant filed a general denial asserting a binding arbitration agreement as a defense.

On August 6, 2025, defendant moved to compel arbitration. Defendant argues that the FAA applies, that the arbitrator must decide issues of enforceability, that the agreement is not unconscionable, that the class claims should be stricken, and that the proceedings should be stayed pending arbitration.

In support of the motion, defendant provides a declaration from its attorney, Janelle J.

Sahouria, who provides litigation-related documents. A declaration from Christy Somers, the Human Resources Manager for defendant, provides evidence that plaintiff did not revoke the arbitration agreement, and that defendant is engaged in interstate commerce. Defendant also submits a declaration from Shellie Roanhaus, the Business Operations Manager for defendant, who attaches an employee handbook and plaintiff's signature page acknowledging receipt. The agreement, which appears in a sans-serif font, and is clearly titled "Mutual Agreement to Arbitrate Claims," spans pages 25-26 of the handbook. The agreement states, in pertinent part:

> Any controversy, dispute or claim arising out of or relating to our employment relationship shall be resolved through final and binding arbitration. Both the Company and you mutually consent to the resolution by binding arbitration of all claims or controversies that the Company may have against you or that you may have against the Company.
>
> […] The Arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Agreement, including but not limited to, any claim that all or any part of this Agreement is void or voidable.

The introduction to the handbook, on page 2, includes the statement, "With the exception of the Mutual Agreement to Arbitrate Claims, nothing in this Employee Handbook creates any contractual obligations, nor is it intended to create any contractual obligations on the part of the Company and its employees."

Plaintiff filed an opposition to the motion late based on what counsel believes were connectivity issues due to weather. Parties stipulated to allow the late filing and to extend the reply deadline commensurately. Plaintiff argues the motion should be denied based on lack of assent, because defendant waived its right to compel arbitration, and because the arbitration agreement is unconscionable. Plaintiff submits a declaration from his counsel in support of the opposition, to which defendants have filed objections.

Evidentiary Objections

Defendant's objections to counsel's declaration in support of the opposition are **overruled** on the grounds asserted, though counsel's statements appear to be of little evidentiary value.

Standard

"A petition to compel arbitration should be granted if the court determines that an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2.) The moving parties bear the burden of proving the existence of the arbitration agreement by a preponderance of the evidence. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove its defense. (*Alvarez, supra,* 60 Cal.App.5th at 580.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; Code Civ. Proc. § 1281].)

Analysis

A. Existence of Agreement

In California, contract formation requires free and mutual consent communicated to each other. (Civ. Code, § 1565.) Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.)

Here, defendant provides evidence of plaintiff having signed an acknowledgement that he had received a copy of defendant's employee handbook and that plaintiff read and understood "all of the policies and procedures." (See Roanhaus Decl., Ex. B.) In his opposition, plaintiff does not deny having signed the acknowledgement page, but argues that it was insufficient to create an agreement to arbitrate under California law. He cites *Sparks v. Vista Del Mar Child & Family Servs.* (2012) 207 Cal. App. 4th 1511. In *Sparks*, the court noted that, like in *Mitri v. Arnel Management Co*. (2007) 157 Cal.App.4th 1164, the relevant employee handbook was informational rather than contractual. The employers in those cases failed to point out or call attention to the arbitration requirement in the acknowledgment form signed by the employees. (*Sparks, supra,* 207 Cal.App.4th at 1520.)

The *Sparks* court held "there must be more than a boilerplate arbitration clause buried in a lengthy employee handbook given to new employees" and set forth a "minimum" standard that "there should be a specific reference to the duty to arbitrate employment-related disputes in the acknowledgment of receipt form signed by the employee at commencement of employment." (*Id*. at 1522.) The rationale discussed there noted that "[t]he increasing phenomenon of depriving employees of the right to a judicial forum should not be enlarged by imposing upon employees an obligation to arbitrate based on one obscure clause in a large employee handbook distributed to new employees for informational purposes." (*Ibid*.) Here, in contrast, the introduction specifically notes that the arbitration provision *is* contractual in nature.

Additionally, the plaintiff in *Sparks* submitted a declaration in opposition to the motion to compel arbitration wherein he stated he "was not made aware of the arbitration clause by defendant and was not aware of it." (*Id*. at 1516.) In *Mitri*, plaintiffs there also each filed a declaration, in which "they denied entering into an arbitration agreement with Arnel or ever being asked to do so." (*Mitri, supra*, 157 Cal.App.4th at 1168.) Here, plaintiff submits no evidence that he declined to arbitrate or was unaware of the agreement.

An agreement to arbitrate may be express or implied. Where an employee accepts employment on certain terms, commences performance, and is paid, this may be construed as assent to the handbook's terms. (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 384, collecting cases; see also *Craig v. Brown & Root, Inc*. (2000) 84 Cal.App.4th 416, 420.)

Defendant has met its burden to show the existence of an agreement to arbitrate.

B. Application of the Federal Arbitration Act

Defendant asserts the agreement here is governed by the Federal Arbitration Act (FAA) by its express terms, which state, "[t]he Arbitrator, not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability, or formation of this Agreement, including but not limited to any claim that all or any part of this Agreement is void or voidable." Plaintiff does not dispute as much. To the extent California law differs from that of the FAA, the FAA would govern.

C. Waiver

Waiver "is the intentional relinquishment or abandonment of a known right." (*Morgan v. Sundance, Inc*. (2022) 596 U.S. 411, 417.) Whether a party moving to compel arbitration has lost its right to compel arbitration as a result of its litigation-related conduct is governed by generally applicable state law contract principles." (*Quach v. California Commerce Club, Inc*. (2024) 16 Cal.5th 562, 572.) "To decide whether a waiver has occurred, the court focuses on the actions of the person who held the right; the court seldom considers the effects of those actions on the opposing party." (*Morgan, supra*, 596 U.S. at 417.)

Until recently, the factors set forth in *St. Agnes Medical Center v. PacifiCare of California* (2003) 31 Cal.4th 1187 governed the analysis of whether waiver on a motion to compel arbitration. There, the high court explained that "a court can consider (1) whether the party's actions are inconsistent with the right to arbitrate; (2) whether the litigation machinery has been substantially invoked and the parties were well into preparation of a lawsuit before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) whether important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place; and (6) whether the delay affected, misled, or prejudiced the opposing party." (*St. Agnes, supra*, 31 Cal.4th at 1196, citations omitted.)

The Supreme Court altered the analysis in *Quach v. California Commerce Club, Inc*. (2024) 16 Cal.5th 562. As described by one court:

> *Quach*'s test for evaluating whether a party has waived its right to compel arbitration differs from *St. Agnes*'s test in three significant ways. First, *St. Agnes*'s arbitration-specific test for waiver required the party opposing a motion to compel arbitration on waiver grounds to prove both dilatory conduct by the party seeking to compel arbitration and prejudice arising from that conduct. (*St. Agnes, supra*, 31 Cal.4th at p. 1203; see also *Quach, supra*, 16 Cal.5th at p. 581 [referring to *St. Agnes*'s "standards" as being "stringent"].) Under Quach, prejudice is no longer "determinative" or, for that matter, even "relevant." (*Quach*, at pp. 573–575, 585.) By focusing solely on whether the words and conduct of the party seeking to compel arbitration evince a relinquishment or abandonment of the right to arbitrate, *Quach* eliminated the prejudice requirement and made proving waiver easier. Second, *St. Agnes*'s arbitration-specific test for waiver turned on a multitude of factors. *Quach* observed that some factors were more pertinent to equitable defenses other than waiver, "such as forfeiture, estoppel, laches or timeliness." (*Id*. at p. 584.) By directing courts to apply the generally applicable standard that "consider[s] only those factors that are relevant to" waiver, *Quach* narrowed the test for waiver and, in that respect, made proving waiver harder. (*Ibid*.) Third, *St. Agnes*'s arbitration-specific test for waiver required the party asserting waiver to prove waiver of arbitration by a preponderance of the evidence. *Quach* raised that standard of proof by requiring the party to prove waiver by clear and convincing evidence—that is, by evidence making it "'highly probable'" the party seeking to arbitrate knew of the contractual right and intentionally relinquished or abandoned it. (*Id*. at p. 584.) In this regard, *Quach* made proving waiver harder.

(*Hofer v. Boladian* (2025) 111 Cal.App.5th 1, 12 [332 Cal.Rptr.3d 506].)

Because defendant waited for over nineteen months prior to bringing the motion, plaintiff asserts that defendant waived the right to arbitrate.

Plaintiff's opposition asserts that "[u]nreasonable delay alone may constitute waiver under *Morgan*." (Memorandum of Points and Authorities in Support of Opposition, 8:10-11, citing *Morgan v. Sundance, Inc.*, *supra*, 596 U.S. 411, 417-419.) However, the U.S. Supreme Court there noted it was only deciding the single issue of whether or not prejudice should be a factor in the arbitration-specific context of waiver. (*Morgan, supra*, 596 U.S. at 416-417.) As for whether timeliness is a factor for waiver under California law, *Quach* at least raised the question. (See *Quach, supra*, 16 Cal.5th at 584 [identifying "laches or timeliness" as "relevant to other defenses […] but not to waiver."].) Plaintiff also cites *Bower v. Inter-Con Security Systems, Inc*. (2014) 232 Cal.App.4th 1035, but that case predates *Quach*, which changed the relevant standard, as detailed above, and involved a party that had propounded significant discovery requests on the party resisting arbitration.

Here, defendant took no action that reveals an intent to abandon the right to arbitration. Delay alone does not suffice. The delay here is further explained by defendant's hope to mediate and invest its limited resources in mediation, two of which were scheduled. Both mediation sessions were, according to the evidence presented, canceled by plaintiff.

Defendant asserted the arbitration defense in its answer, in the joint CMC statement prior to the June CMC, and at the CMC. Defendant did not propound any discovery on plaintiff or make any motions prior to this one. Once the August 2025 mediation was canceled by plaintiff, defendant attempted to have this motion heard on a shortened time basis.

In light of this factual background, the Court does not find "clear and convincing evidence" of defendant intentionally relinquishing or abandoning its right to compel arbitration and concludes there was no waiver.

D. Enforceability Subject to Delegation Clause

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement." (Code Civ. Proc., § 1281.2.)

Defendant asserts that it is the arbitrator who must decide whether the agreement is enforceable. While challenges to the validity of the underlying contract are generally for the arbitrator to decide, challenges to the validity of the arbitration clause itself are generally resolved by the court in the first instance. (*Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1196-1197, citations omitted.) This is because the usual presumption is that a court, not an arbitrator, decides threshold issues of arbitrability such as whether the arbitration agreement itself is valid and enforceable. (*Id*. at 1197, citations omitted.) Still, parties may agree to delegate authority to the arbitrator to decide threshold issues if such a delegation is "clear and unmistakable." (*Id*. at 1197, citations omitted.)

Here, the agreement states that "[t]he Arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Agreement, including but not limited to, any claim that all or any part of this Agreement is void or voidable."

Plaintiff does not respond to the issue of delegation. Accordingly, the Court finds this provision to be a "clear and unmistakable" delegation of threshold arbitrability questions and declines to further analyze the enforceability of the agreement.

7. 9:00 AM CASE NUMBER: C23-03203
CASE NAME: BRYANT POTTS VS. BUILDING CONNECTIONS BEHAVIORAL HEALTH, INC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES**
FILED BY: POTTS, BRYANT
****TENTATIVE RULING:****

Continued to January 22, 2026, at 9:00 a.m., pending the result on the motion to compel arbitration (see Line 6), with the expectation that if that motion is granted, this motion will be taken off calendar.

8. 9:00 AM CASE NUMBER: C23-03215
CASE NAME: MICHAEL PETERSEN VS. GOLD BOND BUILDING PRODUCTS, LLC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: PETERSEN, MICHAEL
****TENTATIVE RULING:****

Plaintiff Michael Peterson moves for preliminary approval of his class action and PAGA settlement with defendant Gold Bond Building Products, LLC.

A. Background and Settlement Terms

The original complaint was filed by Mr. Peterson on December 19, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Plaintiff filed a First Amended Complaint on August 19, 2025 (after this motion was filed), adding PAGA claims based on a PAGA notice filed December 19, 2023. The operative pleading is the First Amended Complaint.

The settlement would create a gross settlement fund of $574,000. The class representative payment to plaintiff would be up to $10,000. Attorney's fees would be $191,500 (one-third of the settlement). Litigation costs would not exceed $20,000. The settlement administrator's costs would not exceed $8,000. PAGA penalties would be $10,000, resulting in a payment of $7,500 to the LWDA and $2,500 to plaintiffs. The net amount paid directly to the class members would be about $335,000. The fund is non-reversionary. Based on the estimated class size of 245, the average net payment for each class member is approximately $1,367.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be cancelled, and the funds transmitted to the State Controller's Unclaimed Property fund.

The settlement contains release language covering "all claims…that were asserted or that reasonably could have been asserted based on the facts alleged in the operative complain and/or PAGA Notice Letter in the action[.]" Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim*

Arena Mgmt., LLC (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint."] "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

The agreement also contains language with respect to PAGA aggrieved employees, in which they release "Released PAGA Claims." (Stipulation Par. 8(ee).) The Court interprets this to cover only claims for penalties under PAGA, not individual wage claims (which are covered for class members under the class release). If counsel interpret this language differently, they should so advise the Court.

Informal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that Neary does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to provide a lodestar figure for any hearing on final approval.

Similarly, litigation costs and the requested representative payment of $10,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The motion is granted.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

9. 9:00 AM CASE NUMBER: C24-01711
CASE NAME: RICH MORGAN VS. SHEA HOMES LIMITED PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP
***HEARING ON MOTION IN RE: STAY**
FILED BY: SHEA HOMES LIMITED PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP
TENTATIVE RULING:

Off calendar. Withdrawn by moving party 1/8/26.

10. 9:00 AM CASE NUMBER: C24-02653
CASE NAME: PAULA FROST VS. ROLLING HILLS MEMORIAL PARK, A CALIFORNIA CORPORATION
***HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING APPEAL**
FILED BY: ROLLING HILLS MEMORIAL PARK, A CALIFORNIA CORPORATION

TENTATIVE RULING:*

Defendant, Rolling Hills Memorial Park, moves for an order to stay this action pending its appeal of the Court's order denying the motion to compel arbitration. For the reasons set forth below, the motion is **granted.** The action is stayed pending determination of the appeal.

I. Factual and Procedural Background

Plaintiff alleges she purchased a burial plot from defendant in September 2009 and in 2021, when her husband passed away, she purchased a marker. (Complaint, ¶¶8; 32.) Plaintiff's husband's headstone was placed incorrectly on the grave of "another putative Class member." (Complaint, ¶34.) As a result, plaintiff's husband's site was without the ordered headstone for many months—a fact not discovered until another putative Class member went to Rolling Hills to visit the gravesite of a family member, and instead found plaintiff's husband's headstone at the location where they would usually visit. (*Ibid*.)

Plaintiff filed this lawsuit as a putative class action on October 4, 2024, alleging seven causes of action including: (1) Breach of Contract; (2) Negligence; (3) Violations Of Business & Professions Code § 17200, Et Seq.; (4) Violations Of Business & Professions Code § 17500, Et Seq.; (5) Nuisance; (6) Trespass; and (7) Intentional and/or Negligent Infliction Of Emotional Distress.

The "other" class member referred to in Frost's complaint appears to be Audrey Williams, who is the plaintiff in Case Number C25-01056, filed in April of 2026 as a separate lawsuit after defendant moved to compel arbitration of plaintiff's claims in this suit. In that case, Williams alleges the same causes of action based on similar factual allegations.

In early June, the Court heard plaintiff's motion to compel arbitration in this case and denied the motion. Defendant has since appealed that ruling and brings this motion to stay the proceedings in this case pending the appeal. The Court denied a motion to consolidate this case with the Williams case, wherein defendant has also moved to compel arbitration. The hearing on the motion to compel arbitration is currently set for hearing on January 26th in another department.

II. Evidentiary Issues

With its motion, defendant seeks judicial notice of eight documents:

A. list of Carriage Services, Inc.'s subsidiaries as contained in its Form 10-K Annual Report filed with the United States Securities and Exchange Commission;
B. defendant's motion to compel arbitration filed in this case;
C. a joint stipulation and proposed order continuing the hearing on that motion;
D. Court's June 5, 2025 order denying the motion;
E. defendant's notice of appeal;
F. the complaint in the *Williams* action;
G. defendant's motion to compel arbitration in the *Williams* action.

The request is unopposed and is **granted**.

Defendant objects to paragraphs 4 and 11-21 in counsel's declaration supporting the opposition. The objection is made on the basis that these paragraphs constitute improper legal argument, not facts. Defendant cites a footnote in family law case, *In re Marriage of Heggie* (2002) 99 Cal.App.4th 28, 30, fn. 3. The paragraphs in the declaration hold little evidentiary value because they include multiple legal conclusions, but the cited authority does not constitute grounds to exclude the statements as *inadmissible*. Accordingly, the objection is **overruled**.

On reply, defendant seeks judicial notice of this Court's own order issued on November 13, 2025 denying the motion to consolidate. Because the order does not appear necessary to the points made in the motion, and because new arguments and evidence cannot be raised in a reply unless the opposing party is given an opportunity to respond, the Court **denies** the request in support of the reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.)

III. Legal Background and Standard

The appeal of an order denying a petition to compel arbitration under the Federal Arbitration Act, 9 U.S.C. section 1 *et seq.* ("FAA") triggers an automatic stay. In *Coinbase, Inc. v. Bielski* (2023) 599 U.S. 736, the United States Supreme Court addressed whether a federal district court must stay its proceedings while the appeal of a denial of a motion to compel arbitration is pending. (*Id*. at 738 ["When a federal district court denies a motion to compel arbitration, the losing party has a statutory right to an interlocutory appeal. See 9 U.S.C. § 16(a). The sole question here is whether the district court must stay its pre-trial and trial proceedings while the interlocutory appeal is ongoing"].) The Court held: "The answer is yes: The district court must stay its proceedings." (*Ibid*.)

In contrast, California Code of Civil Procedure section 1294(a) makes appealable an order denying a motion to compel arbitration, but does not mandate a stay pending appeal. This divergence with federal procedures is relatively recent.

Prior to a 2024 amendment of Code of Civil Procedure section 1294(a), case law in California held that an order denying a motion to compel arbitration embraced the action as a whole, and as a result, "an appeal from the denial of a motion to compel arbitration automatically stays all further trial court proceedings on the merits." (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189-191; *Prudential-Bache Securities, Inc. v. Superior Court* (1988) 201 Cal. App. 3d 924, 925.) Code of Civil Procedure section 916(a) provides in pertinent part, "Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Code Civ. Proc. § 916(a).)

California enacted an amendment to Code of Civil Procedure section 1294(a) effective January 1, 2024 to add, "Notwithstanding Section 916, the perfecting of such an appeal shall not automatically stay any proceedings in the trial court during the pendency of the appeal." (Code Civ. Proc. § 1294(a).)

IV. Discussion

Defendant's motion for a stay pending appeal in this case relies on the applicability of the FAA, but also cites the Court's inherent, discretionary authority to stay an action pending before it. Plaintiff's opposition argues that California law does not mandate a stay, that California law (Code Civ. Proc. § 1294(a)) is not preempted, and that the policies articulated in *Coinbase, Inc. v. Bielski* (2023) 599 U.S. 736 do not apply here.

As explained below, the Court finds that a stay is mandated, and that even if a stay were not mandated, a discretionary stay is appropriate to preserve the *status quo* during the appeal.

A. Coinbase and FAA Preemption Mandate Stay

The Court in *Coinbase* explained that, as under California Code of Civil Procedure section 1294(a), when a court denies a motion to compel arbitration, the losing party has the right to appeal that order under 9 U.S.C. § 16, one of the provisions of the FAA. The Court held a district court which denies a motion to compel arbitration "must stay its pre-trial and trial proceedings while the interlocutory appeal is ongoing." (*Id.* at 738.)

While no published decision in California has addressed the preemption issue, the Court has analyzed the "no automatic stay" provision of section 1294(a), the *Coinbase* decision, California decisions addressing the FAA's policies and purposes, and preemption principles applied in arbitration. The Court concludes that the provision is preempted.

As the Court in *Coinbase* explained, the federal courts are subject to the so-called "*Griggs* principle" which is essentially adopted by statute in California in Code of Civil Procedure section 916(a), specifically that "[a]n appeal, including an interlocutory appeal, divests the district court of its control over those aspects of the case involved in the appeal." (*Coinbase, supra,* 599 U.S. at 740, quoting *Griggs v. Provident Consumer Discount Co.* (1982) 459 U.S. 56, 58.) According to the Supreme Court, the "*Griggs* principle" resolved the issue:

> Because the question on appeal is whether the case belongs in arbitration or instead in the district court, the entire case is essentially "involved in the appeal." [Citation omitted.] As Judge Easterbrook cogently explained, when a party appeals the denial of a motion to compel arbitration, whether "the litigation may go forward in the district court is precisely what the court of appeals must decide." [Citation omitted.] Stated otherwise, the question of whether "the case should be litigated in district court . . . is the mirror image of the question presented on appeal." [Citation omitted.] Here, as elsewhere, it "makes no sense for trial to go forward while the court of appeals cogitates on whether there should be one. [Citation omitted.] In short, *Griggs* dictates that the district court must stay its proceedings while the interlocutory appeal on arbitrability is ongoing.

(*Coinbase, supra,* 599 U.S. at 741.)

Not imposing an automatic stay of litigation in the trial court pending the appeal would "largely nullif[y]" the right to appeal the order denying arbitration and would result in "many of the asserted benefits of arbitration (efficiency, less expensive, less intrusive discovery, and the like)" being "irretrievably lost – even if the court of appeals later concluded that the case actually had belonged in arbitration all along." (*Coinbase, supra,* 599 U.S. at 743.)

Section 16 of the FAA appears on its face to be a procedural provision of the FAA, just as Code of Civil Procedure section 1294(a) appears to be procedural provision of the CAA. (*See* 9 U.S.C. § 16 and compare to Code Civ. Proc. § 1294(a).)

Defendant has presented evidence that defendant's business involves interstate commerce within the meaning of the FAA such that the FAA applies as a matter of substantive law, and plaintiff does not contest this point specifically. Still, though the FAA's substantive law on arbitration may govern (assuming this Court's order were reversed on the basis that there was, in fact, an applicable arbitration agreement), it does not follow that the FAA would necessarily provide the procedural guidelines instead of California law.

When a motion to compel arbitration is filed in California state court, California's procedural provisions in the California Arbitration Act apply unless the arbitration agreement expressly provides that the parties have adopted the FAA procedural rules. (*Gallo v. Wood Ranch USA, Inc.* (2022) 81 Cal.App.5th 621, 644; *Espinoza v. Superior Court* (2022) 83 Cal.App.5th 761, 771, 775-778; *Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 179.) (*See also Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394 ["Our opinion does not preclude parties to an arbitration agreement to expressly designate that any arbitration proceeding should move forward under the FAA's procedural provisions rather than under state procedural law."].)

Section 16 of the FAA does not expressly state that it governs state court proceedings so, like other federal procedural rules, it is not binding on California proceedings, “provided applicable state procedures do not defeat the rights granted by Congress." (*Muao v. Grosvenor Properties, Ltd*. (2002) 99 Cal.App.4th 1085, 1091-1092, citations omitted.) A state law rule is preempted when its impact is such that it interferes with fundamental attributes of arbitration. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1144, citing *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 131 S. Ct. 1740, 1748.)

Here, the state procedure of not imposing an automatic stay when an appeal is filed after an order denying a motion to compel arbitration does appear to “defeat the rights granted by Congress.” Lack of a stay here would frustrate the FAA's goal of encouraging “efficient, streamlined,” speedy procedures.” (See *Concepcion*, supra, 563 U.S. at 344.)

The provision of Code of Civil Procedure section 1294(a) eliminating the automatic stay on appeal of an order denying a motion to compel arbitration is not facially neutral. It is directed specifically to arbitration by creating a procedural rule that carves out an order denying arbitration from the otherwise generally applicable California procedural law. As such, it is preempted by the FAA. The general rule of Code of Civil Procedure section 916(a) applies and imposes a stay pending determination of the appeal.

B. <u>Discretionary Stay Warranted</u>

Even if the Court were to side with plaintiff on the issue of preemption, it has discretion to stay the action pending appeal based on the Court's inherent power to administer the cases before it. (Code Civ. Proc. § 918(a); *Daly v. San Bernardino County Bd. of Supervisors* (2021) 11 Cal.5th 1030, 1039.)

Among other things, a discretionary stay is warranted based on the potential waste of judicial resources and based on the prejudice that both parties may suffer from the burden and expense of pursuing litigation and discovery that may have little or no value if the case is determined by the appellate court to belong in arbitration. Defendant emphasizes the broad scope of discovery requests propounded by plaintiff. (See Memorandum of Points and Authorities in Support of Motion, 11-12 [“seeking hundreds of thousands, if not millions, of documents regarding thousands of individuals dating back sixteen years”].) Defendant also highlights the potential emotional disruption to numerous contacts who have lost their loved ones. Considering that the scope of this putative class action depends on the enforceability of the arbitration provisions, the risk of wasted efforts and resources is high.

11. 9:00 AM CASE NUMBER: C24-03044
CASE NAME: MARIO BROWN VS. AUTO WAREHOUSING CO.
***HEARING ON MOTION IN RE: STAY PROCEEDINGS**
FILED BY: AUTO WAREHOUSING CO.

TENTATIVE RULING:

The unopposed motion to stay this action pending the action in federal court is granted, subject to periodic case management conferences in order to ascertain the status of the federal action. The February 11, 2026, case management conference will remain on calendar.

12. 9:00 AM CASE NUMBER: JCCP5421
CASE NAME: PUBLIC HEALTH FOUNDATION WAGE AND HOUR CASES
***HEARING ON MOTION IN RE: COORDINATION OF CASES SET BY THE DEPARTMENT**
FILED BY:
TENTATIVE RULING:

Petitioner Alicia Stephens petitions for coordination of the following actions: (1) *Stephens v. Public Health Foundation Enterprises, Inc*., Class Case No. 25STCV13543 (lead case) ("*Stephens* Class Action"); (2) *Stephens v. Public Health Foundation Enterprises, Inc*., AGA Case No. 25PSCV02587 ("*Stephens* PAGA Action") pending in Los Angeles County Superior Court, Spring Street Courthouse (collectively, referred to as "Stephens Actions"); (3) *Kizart v. Public Health Foundation Enterprises, Inc*., Case No. C24-03522 pending in Contra Costa County Superior Court

For the reasons set forth below, the petition for coordination is **denied** without prejudice. In the event the pending settlement in *Kizart* is not approved, then the Court will consider a renewed petition.

Brief Factual and Procedural Background

Kammure Kizart filed the instant PAGA suit, Contra-Costa Case No. C24-03522, on December 26, 2024 after noticing the suit before the LWDA on October 21, 2024. The Kizart Complaint seeks PAGA civil penalties for Defendant's alleged violation of California Labor Code sections: (a) 510 and 1198 (unpaid overtime); (b) 1182.12, 1194, 1197, 1197.1, and 1198 (unpaid minimum wages); (c) 512(a), 516, and 1198 (failure to provide meal periods); (d) 226.7, 516, and 1198 (failure to authorize and permit rest periods); (e) 226(a), 1174(d), and 1198 (non-compliant wage statements and failure to maintain accurate payroll records); (f) 227.3 (failure to pay vested vacation wages); (g) 204 (failure to timely pay wages during employment); (h) 201 and 202 (failure to timely pay final wages upon termination); and (i) 2802 (unreimbursed business expenses).

On May 8, 2025, Petitioner Alicia Stephens submitted a notice to the Labor and Workforce Development Agency ("LWDA") alleging violations of the California Labor Code by Defendant Public Health Foundation Enterprises, Inc. On May 8, 2025, Petitioner filed her Class Action Complaint against Defendant Public Health Foundation Enterprises, Inc., seeking damages for violations of the California Labor Code. The Class Action Complaint includes allegations against Defendant for violations of the California Labor Code for (1) unpaid overtime; (2) unpaid meal period premiums; (3) unpaid rest period premiums; (4) unpaid minimum wages; (5) final wages not timely paid; (6) wages not timely paid during employment; (7.) non-compliant wage statements; (8) failure to keep requisite payroll records; (9:) unreimbursed business expenses; and (10) violation of California Business and Professions Code section 17200, et seq.

On July 14, 2025, Petitioner filed a separate Complaint for Enforcement under the Private Attorneys General Act, California Labor Code § 2698, Et Seq., Case No. 25PSCV02587 against Defendant Public Health Foundation Enterprises, Inc. The allegations include (1) failure to pay overtime, (2) failure to provide meal periods, (3) failure to provide rest periods, (4) failure to pay minimum wages, (5) failure to timely pay wages upon termination, (6) failure to timely pay wages during employment, (7) failure to provide complete and accurate wage statements, (8) failure to keep complete and accurate payroll records, and (9) failure to reimburse necessary business-related expenses and costs.

On September 15, 2025, Petitioner filed Notices of Related Cases seeking to relate the *Stephens* Class Action and *Stephens* PAGA Action to the *Kizart* PAGA Action. On September 16, 2025, Defendant filed Notices of Related Cases seeking to relate the *Stephens* Class Action to the *Stephens* PAGA Action. On September 17, 2025, Petitioner filed a Notice of Related Case seeking to relate the *Kizart* PAGA Action to the *Stephens* Actions.

On September 29, 2025, Petitioner filed the instant petition for coordination.

The *Kizart* case reached a settlement following mediation with Retired Judge Howard R. Broadman on November 19, 2025. (TabataBaeepour Decl. at ¶¶ 3,4.) The motion for approval of the *Kizart* PAGA Settlement is currently set for hearing on June 11, 2026.

Analysis

Petitioner moves pursuant to CCP § 404.1 for an order coordinating the *Stephens* Class Action, *Stephens* PAGA Action, and *Kizart* PAGA Action and assigning them to the Los Angeles County Superior Court.

CCP§ 404.1 provides:

> Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.

Given the procedural posture of *Kizart*, the Court cannot conclude that coordinating the *Stephens* Actions and *Kizart* Action present common questions of law or fact. All that remains to be decided in Kizart is whether the settlement meets the criteria established for judicial approval of PAGA settlements. (See *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 64 [“fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements.) That court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

The underlying Labor Code disputes will not be decided by the Court.

The Court cannot conclude that formal coordination is necessary or would serve judicial economy. As a consequence, the petition for coordination is **denied**.

13. 9:00 AM CASE NUMBER: MSC16-01118
CASE NAME: YUE VS. TRIGMAX SOLUTIONS
***HEARING ON MOTION IN RE: NEW TRIAL SET BY THE COURTROOM (NOTICE FILED 11.10.2025)**
FILED BY: YUE, DONGXIAO
TENTATIVE RULING:*

Plaintiff Dongxiao Yue's motion for a new trial is **denied**.

Plaintiff filed this motion for a new trial, challenging the Court's order granting Defendant Liu's motion to dismiss. (Order filed November 19, 2025.) Plaintiff's motion was filed after the Court heard oral argument on its tentative ruling on the motion to dismiss, but before the order was actually signed by the Court. In any event, it is clear what ruling Plaintiff is challenging here and the order dismissing Plaintiff's claims against Liu has now been filed.

Plaintiff moves for a new trial under Code of Civil Procedure sections 656, 657 and 659. Plaintiff argues that there has been an error in law.

Plaintiff objects to Defendant's opposition as being filed late. Section 659a states that an opposition to a motion for new trial shall be filed 10 days after service of the motion, with an option to extend the deadline by an additional 10 days based upon a showing of good cause or by stipulation. (Code of Civil Procedure section 659a). Here, Plaintiff filed his motion on November 10, 2025. Although Plaintiff did not file a proof of service, in his objection he attaches a printout that proports to show service on Defendant Liu by email on November 10, 2025. (Objection ex. 1.) Defendant filed his opposition on December 15, 2025, which is more than 20 days after Plaintiff filed his motion. Plaintiff then filed an objection to Defendant's opposition and then a reply to Defendant's response to Plaintiff's objection.

The deadlines in section 659a for filing papers in support of and opposition to a new trial motion are not jurisdictional. (*Kabran v. Sharp Memorial Hospital* (2017) 2 Cal.5th 330, 337.) Further, there is no prejudice here as Plaintiff had ample time to file a reply to Defendant's late opposition. The Court will consider Defendant's late opposition, as well as Plaintiff's objection to the opposition, Defendant's response to the objection and finally, Plaintiff's reply to Defendant's response.

Defendant argues this is a motion for reconsideration, not a motion for new trial. A "new trial motion [is] a proper mechanism… to challenge the judgment of dismissal for failure to prosecute. (See *Finnie v. District No. 1 - Pacific Coast Dist. etc. Assn.* (1992) 9 Cal.App.4th 1311, 1316.)" (*Nunn v. JPMorgan Chase Bank, N.A.* (2021) 64 Cal.App.5th 346, 362.) The Court finds that a motion for new trial is a valid motion to challenge the Court's ruling on the motion to dismiss.

Turning to the merits of the motion for new trial, Plaintiff argues that the Court committed an error in law because the Court did not follow controlling authorities, including *McDonough Power Equipment Co. v. Superior Court of Los Angeles County* (1972) 8 Cal.3d 527 (*McDonough*) and *Finnie, supra,* 9 Cal.App.4th 1311.

Plaintiff's first argument on the merits involves an analysis of the cases discussed in the court's order. Plaintiff argues that *McDonough* provided an expansive definition of "trial" such that it covers the situation here, a reversal of the trial court's ruling granting a motion to dismiss for lack of prosecution. Plaintiff discusses *Finnie* and *Nunn* and how the *Finnie* found the reasoning in *Fannin Corp. v. Superior Court* (1974) 36 Cal.App.3d 745 to be "questionable". Plaintiff also notes that *Wilshire Bundy Corp. v. Auerbach* (1991) 228 Cal.App.3d 1280 and *Greene v. Howmedica, Inc.* (1993) 13 Cal.App.4th 912 did not discuss *McDonough*. The Court considered all these cases in its prior order and has reconsidered these cases.

McDonough and *Finnie* involved reversals of dismissals based upon rulings from demurrer and *Nunn* involved a reversal from an order granting summary judgment. None of Plaintiff's cited cases hold that the reversal of an order granting a motion to dismiss for failure to prosecute constitutes a "new trial" under section 583.310-583.360. Further, even assuming that *Finnie*'s attempt to limit *Fannin* so *Fannin* only applies in cases where there was not an unqualified reversal (*Finnie*, *supra*, 8 Cal.App.4th at 1319 fn. 5) that still does not explain the holding *Greene* or the dicta in *Wilshire*.

Plaintiff argues that the meaning of "trial" should be consistent when used in section 583, et seq and sections 656, et seq. While there is some logic to that argument, the cases cited by Plaintiff, including *McDonough* and *Finnie*, show that Courts do not use the definition of trial interchangeably between the two sections. Rather, the courts provide separate analysis for what is a trial in a motion for a new trial and what constitutes a trial in a motion under 583, et seq. (See *McDonough, supra,* 8 Cal.3d at 531 [section 656 does not provide an exclusive definition of trial or new trial, nor does it establish an identity of meaning between the term trial as used in section 656 and as used in section 583]; see also, *Finnie, supra,* 9 Cal.App.4th at 1317.)

The Court is not convinced that its prior order granting the motion to dismiss was made in error and therefore denies this motion.

14. 9:00 AM CASE NUMBER: MSC19-02640
CASE NAME: ALAMMARI VS OCEAN CITIES PIZZA, INC.
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM (CONTINUED FROM 12.11.2025)**
FILED BY:
TENTATIVE RULING:

The Settlement Administrator's supplemental declaration (filed January 12, 2026), shows that the settlement terms have been implemented. The Administrator is authorized to convey $342,817.99 in unclaimed funds to the State Bar's Justice Gap Fund as the designated cy pres beneficiary. Counsel are directed to prepare an amended judgment so reflecting, pursuant to the terms of Code of Civil Procedure section 384.5. Once the Amended Judgment is filed with the court, the Settlement Administrator is directed to disburse the remaining 5% of attorney's fees ($51,356) to plaintiff's counsel. No further proceedings are contemplated.

15. 9:00 AM CASE NUMBER: MSC20-01334
CASE NAME: DASIA SEABROOKS VS CAR DEALER PROMOTIONS
***HEARING ON MOTION IN RE: FINAL COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:
The Settlement Administrator's declaration shows that the settlement terms have been implemented. The Administrator is authorized to convey $42,346.45 in unclaimed funds to Legal Aid at Work of San Francisco, the designated cy pres beneficiary. Counsel are directed to prepare an

amended judgment so reflecting, pursuant to the terms of Code of Civil Procedure section 384.5. Once the Amended Judgment is filed with the court, the Settlement Administrator is directed to disburse the remaining 5% of attorney's fees to plaintiff's counsel. No further proceedings are contemplated.

16. 9:00 AM CASE NUMBER: MSC20-01863
CASE NAME: JACKSON VS ANOVA CENTER
***HEARING ON MOTION IN RE: (REDACTED) SEAL AND POINTS AND AUTHORITES IN SUPPORT OF MOTION TO SEAL**
FILED BY: JACKSON, DAWNELLE
****TENTATIVE RULING:****
Appearance required. The motion did not include a set of the documents in question in **un**redacted form, filed conditionally under seal, as required under CRC 2.551(b)(4) and (d). The motion also did not include a proposed order setting out the required factual findings as required by CRC 2.550(d).

17. 9:00 AM CASE NUMBER: MSC20-01863
CASE NAME: JACKSON VS ANOVA CENTER
***HEARING ON MINOR'S COMPROMISE**
FILED BY: JACKSON III, FARRELL EUGENE
****TENTATIVE RULING:****
Appearance required (by counsel only). Because counsel filed only redacted versions of the documents, and did not file unredacted versions conditionally under seal, the Court cannot evaluate the petition. (See line 16.)

18. 9:00 AM CASE NUMBER: P23-01695
CASE NAME: ESTATE OF VINCENT RICHARD UJDUR
HEARING IN RE: PETITION FOR FINAL DISTRIBUTION ON FIRST AND FINAL ACCOUNTING
FILED BY: UJDUR, TERI
****TENTATIVE RULING:****
Appearances required. (Zoom is sufficient.)